

		parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. “Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. [Citation.]” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) Plaintiff states that Defendant has failed to close escrow within 75 days of the execution of their settlement agreement as required to buy out Plaintiff’s interest in the property. Plaintiff contends that the subject property must therefore be sold under the terms of the settlement agreement. Plaintiff requests an order for (1) 18851 Quince Circle, Fountain Valley, CA 92708 to be sold, and (2) for Plaintiff to receive 81.5% of the sales proceeds and Defendant to receive the remaining 18.5% pursuant to Sections 2.3 and 5.9 of the settlement agreement. Plaintiff has not submitted any evidence to support the assertion that Defendant failed to close escrow. The only evidence submitted by Plaintiff is a declaration by counsel. This declaration is insufficient, as it does not mention any failure by Defendant to close escrow. Evidence showing the particular violation asserted here—Defendant’s failure to close escrow and complete purchase within 75 days after the execution of the settlement agreement—is required before the Court can enter the judgment requested by Plaintiff. Based on the above, the Motion is DENIED without prejudice. Plaintiff to give notice.
12.	30-2024-01431856 Vargas vs. Hernandez	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Special Interrogatories 4. Motion to Compel Production 5. Motion to Compel Production 6. Motion to Compel Production 7. Order to Show Cause re: Appointment of Referee Plaintiff Yharetzy Vargas, a minor by and through her guardian ad litem, Yuliana Vargas Pompa (“Plaintiff”) moves to compel defendant Grisell Gua Ramirez Hernandez (“Defendant”) to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Demands for Production (Sets One, Two, and Three) and for an order imposing monetary sanctions against Defendant for her failure to serve timely responses. Verified responses to the discovery at issue have been provided. Thus, the Motions are DENIED as MOOT. However, Plaintiff’s requests for monetary sanctions against Defendant and her counsel are GRANTED in the amount of \$1,000.00, as the Court finds no substantial justification for Defendant’s delay in providing responses until after these Motions were filed. (Code Civ. Proc., §§ 2030.300(d), 2031.310(h); Cal. Rules of Court, rule 3.1348(a).) Sanctions to be paid within 30 days. Moving party to give notice.